

Jitendra S/O Vasudeorao Bobde And 5 ... vs State Of Mah. Thr. Pso Ps Khadan Akola ... on 13 October, 2022

Author: Vinay Joshi

Bench: Vinay Joshi

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932 & 933.apl.230.2021+1.Judgment...odt

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH : NAGPUR

CRIMINAL APPLICATION (APL) NO.230 OF 2021

1. Shri Jitendra S/o Vasudeorao Bobde,
aged about 34 years, occu.: Private
Service, R/o House Number 1685,
Chinchbhuvan, Near Datta Mandir,
Wardha Road, Nagpur.

Sou. Ankita alias Namrata W/o Jitendra
2. Bobde, aged about 25 years,
occu.: Housewife, R/o House Number
1685, Chinchbhuvan, Near Datta Mandir,
Wardha Road, Nagpur.
3. Sou. Savita w/o Murlidhar Bhoyar,
aged about years 46, occu.: housewife,
R/o. Lonkhed, Saoner, Tahsil Saoner,
District Nagpur.
4. Sou. Varsha w/o Shankarrao Pawar,
aged about 42 years, occu.; housewife,
R/o. Godani Saoner Road, Nagpur,
District Nagpur.

Sunanda Rajendraji Chandurkar,
5. aged about 40 years, Occu.: housewife,
R/o Malegaon, Saoner Road, Nagpur,
District Nagpur.
6. Sou. Pratibha Moreshwarji Shrikhande,
aged about 36 years, Occu.: housewife,

... APPLICANTS

R/o. Kalmeshwar, Tahsil Kalmeshwar,
District Nagpur.

Versus

1. State of Maharashtra, Through Police

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Station Officer, Police Station Khadan,
Akola, Tahsil and District Akola

2. Sou Pradnya W/o Devendra Bobde,
aged about 25 years, occu.: Service,
R/o. Basera Colony, Gorakshan Road, ...NON-
Near Late Lobhaji Appa Gavali Mangal APPLICANTS
Karyalaya, Mankapur, Akola - 444004.

AND

CRIMINAL APPLICATION (APL) NO.1325 OF 2022

Devendra S/o Wasudeorao Bobde,
Aged about 31 years, Occupation -
Service, Residing at F 804, Green City

... APPLICANTS

CHS, Satav Nagar, Hadapsar, Pune
411 028, Maharashtra (India)

Versus

1. State of Maharashtra, Through Police
Station Officer, Police Station, Khadan,
Akola, Tahsil and District Akola.

2. Sou Pradnya W/o Devendra Bobde,
Aged about 25 years, Occupation-
Service, Resident of Basera Colony, ...NON-
Gorakshan Road, Near Late Lobhaji Appa

APPLICANTS

Gawali Mangal Karyalaya, Mankapur,
Akola 444 004.

Shri. Atharva S. Manohar, Advocate for applicant in both
applications.

Shri A. R. Chutke, APP for non-applicant No.1 in both
applications.

Shri Ved R. Deshpande, Advocate for non-applicant No.2 in
both applications.

CORAM : VINAY JOSHI AND
MRS. VRUSHALI V. JOSHI, JJ.

DATED : 13/10/2022

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ORAL JUDGMENT : [PER: VINAY JOSHI, J.]

1. Heard.

2. ADMIT. Heard finally by consent of the learned counsel appearing for the parties.

3. Both applications have been filed under Section 482 of the Code of Criminal Procedure seeking to quash FIR bearing Crime No.798 of 2020 registered with Police Station, Khadan, Akola for the offence punishable under Sections 498-A, 506 and 504 of the Indian Penal Code (hereinafter referred to as 'the IPC').

4. Applicants are husband and nearer relatives of the husband of non-applicant lady, namely, Pradnya w/o Devendra Bobde. To be specific, applicants of Criminal Application (APL) No.230 of 2021 are nearer relatives of husband of wife Pradnya, whilst applicant of Criminal Application (APL) No.1325 of 2022 is husband of Pradnya. The husbands' relatives have sought to quash the FIR on the ground that no offence has been made out against them. However, in Criminal Application (APL) No.1325 of 2022 husband seeks to quash FIR on the ground that the parties have amicably settled the dispute out of Court and therefore, continuation of investigation is an abuse of the process of the Court.

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5. The couple got married on 14.02.2020 as per Hindu Customary Rights. Due to matrimonial differences non-applicant - wife has lodged report with concerned police station on 01.12.2020 alleging matrimonial cruelty within the meaning of Section 498-A of the IPC. The police have commenced investigation, however, by virtue of interim order of this Court in Criminal Application (APL) No.230 of 2021, the charge-sheet has not been filed. It is informed that the police have not filed charge-sheet against husband also till date.

6. It is contended that the marriage was short lived as after two months from the marriage differences arose, due to which the non-applicant lady left her matrimonial house and started to reside with her parents. The couple was of the view that there is no possibility of living together at any point of time, therefore, they have settled the matter with the mediation of elders of the family. It was decided that the parties shall withdraw rival civil/criminal cases and would get divorce. In the meantime, the husband had already filed divorce petition bearing No.A/460/2021 in the Family Court, Pune. In said petition, consent terms have been filed and both are intending to urge Family Court to convert the petition in terms of Section 13-B of the Hindu Marriage Act. In both petitions

copies of 5 932 & 933.apl.230.2021+1.Judgment...odt consent terms along with affidavit of both the parties have been filed showing the settlement between the parties. Particularly, our attention has been invited to clause (h) of the affidavit filed by wife in Family Court bearing recital that she would offer 'no objection' and assist the applicant in the proceeding of quashing of FIR.

7. In both applications non-applicant - wife has filed a separate affidavit reiterating that the matter has been settled and she do not want to prosecute the criminal case bearing Crime No.798 of 2020 against the applicants. She has stated that they have amicably resolved the dispute and to live in peace and harmony, she do not want to prosecute the criminal case.

8. Today non-applicant Pradnya Bobde is present in Court, who is identified by her Advocate Shri. Ved Deshpande. The non- applicant Pradnya Bobde is accompanied by her father, namely, Murlidhar Champatrao Belsare. We have personally inquired with the lady to which she has accepted the settlement and filing of affidavit giving her 'no objection' for quashing of FIR. We are satisfied that her act of giving consent is voluntary.

9. The dispute is of personal nature arising out of domestic differences. In order to maintain peace and to facilitate both sides to 6 932 & 933.apl.230.2021+1.Judgment...odt withdraw all the rival petitions, it would be in the interest of justice to accept the prayer. Moreover, when the informant lady is not willing to prosecute, there is no purpose in going on with trial which would be futile exercise. We find that this is a fit case to invoke our inherent powers.

10. It was one of the terms of settlement that the husband has paid Rs.2,00,000/- to wife and undertook to pay remaining amount of Rs.3,00,000/- at the time of conversion of Hindu Marriage Petition into a Petition under Section 13-B of the Hindu Marriage Act. Since the partial amount was not paid, on our query, upon instructions, Advocate Shri Manohar, made a statement that applicant - husband would deposit remaining amount of Rs.3,00,000/- in Family Court, Pune within one week from today. We take the submission as an undertaking given to this Court.

11. In view of that we allow both applications and hereby quash and set aside the FIR bearing Crime No.798 of 2020 registered with Khadan Police Station, Akola. The applicant - husband shall abide by his undertaking as referred above.

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12. All pending applications, if any, stands disposed of.

(MRS. VRUSHALI V. JOSHI, J.)

(VINAY JOSHI, J.)

Sarkate

